



Report and Recommendation of the President to the Board of Directors

PUBLIC

Project Number: 55182-001
March 2022

Proposed Loan AEW India West One Private Limited AJ Solar Power Project (India)

This is a redacted version of the document approved by ADB's Board of Directors, which excludes information that is subject to exceptions to disclosure set forth in ADB's Access to Information Policy.

Asian Development Bank

CURRENCY EQUIVALENTS

(as of 1 March 2022)

Currency unit	–	Indian rupee/s (₹)
₹1.00	=	\$0.01323
\$1.00	=	₹75.5595

ABBREVIATIONS

ADB	–	Asian Development Bank
AEW	–	Al Jomaih Energy and Water Company (Confidential information redacted)
AWP	–	AEW India West One Private Limited
BCD	–	basic customs duty
COVID-19	–	coronavirus disease
DISCOM	–	distribution company (Confidential information redacted)
GETCO	–	Gujarat Energy Transmission Corporation Limited
GST	–	goods and services tax
GUVNL	–	Gujarat Urja Vikas Nigam Limited
KSA	–	Kingdom of Saudi Arabia
O&M	–	operation and maintenance
PPA	–	power purchase agreement
SCOD	–	scheduled commercial operations date

WEIGHTS AND MEASURES

GW	–	gigawatt
kWh	–	kilowatt-hour
MW	–	megawatt

GLOSSARY

Balance of system	–	Components and equipment that move energy produced by solar panels through the conversion system, which in turn produces alternating current electricity.
Basic customs duty	–	On 10 March 2021, the Government of India announced the imposition of a basic customs duty of 40% on imported solar modules and 25% on solar cells, effective 1 April 2022.
Capacity utilization factor	–	Calculated from 1 April to 31 March.
Financial closure	–	Signing of financing documents with lenders, signing of the implementation and service agreement, signing of the lease agreement, and adoption of technology in accordance with the Ministry of New and Renewable Energy's Approved Models and Manufacturers of Solar Photovoltaic Modules (Requirements for Compulsory Registration) Order, 2019.

Grid backdown	–	The power supplier is ordered to reduce output by the grid operator primarily because of lack of demand.
Grid unavailability	–	The temporary unavailability of evacuation infrastructure beyond the delivery point which does not allow the evacuation of the power generated.
Must-run status	–	The power generated from a project will be compulsorily evacuated, except for reasons of grid safety and security and force-majeure events.
P90 scenario	–	The statistical confidence level at which 90% of possible estimates exceed the value assumed.

NOTES

- (i) The fiscal year (FY) of AEW India West One Private Limited ends on 31 March. “FY” before a calendar year denotes the year in which the fiscal year ends, e.g., FY2022 ends on 31 March 2022.
- (ii) In this report, “\$” refers to United States dollars.

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PROJECT AT A GLANCE

1. Basic Data		Project Number: 55182-001	
Project Name	AJ Solar Power Project	Department/Division	PSOD/PSIF1
Country	India		
Borrower	AEW India West One Private Limited		
Portfolio at a Glance	https://www.adb.org/Documents/LinkedDocs/?id=55182-001-PortAtaGlance		
2. Sector	Subsector(s)	ADB Financing (\$ million)	
✓ Energy	Renewable energy generation - solar	Total	53.777
			53.777
3. Operational Priorities		Climate Change Information	
✓ OP2: Accelerating progress in gender equality		GHG reductions (tons per annum)	158,000.000
✓ OP3: Tackling climate change, building climate and disaster resilience, and enhancing environmental sustainability		Climate Change impact on the Project	Low
		ADB Financing	
		Adaptation (\$ million)	0.000
		Mitigation (\$ million)	53.777
		Cofinancing	
		Adaptation (\$ million)	0.000
		Mitigation (\$ million)	0.000
Sustainable Development Goals		Gender Equity and Mainstreaming	
SDG 5.a		Some gender elements (SGE)	✓
SDG 7.2			
SDG 13.a		Poverty Targeting	
		General Intervention on Poverty	✓
4. Nonsovereign Operation Risk Rating			
Obligor Name		Final Project Rating	Facility Risk Rating
AEW India West One Private Limited			
5. Safeguard Categorization Environment: B Involuntary Resettlement: B Indigenous Peoples: C			
6. Financing			
Modality and Sources		Amount (\$ million)	
ADB		53.777	
Nonsovereign Local Currency Loan (Regular Loan): Ordinary capital resources		53.777	
Cofinancing		0.000	
None		0.000	
Others ^a		21.487	
Total		75.264	
Currency of ADB Financing: Indian Rupee			

^a Derived by deducting ADB financing and Cofinancing from Total Project Cost.

I. THE PROPOSAL

1. I submit for your approval the following report and recommendation on a proposed loan of up to ₹4,063,400,000 (or its equivalent in United States dollars) to AEW India West One Private Limited (AWP) for the AJ Solar Power Project in India.

2. The Asian Development Bank (ADB) loan to AWP will fund the construction of an 80-megawatt (MW) solar photovoltaic-based power plant at Limbdi in Surendranagar in the state of Gujarat in India. The project will further diversify the energy mix of India in favor of renewable energy and is aligned with the target of Government of India to reach 500 gigawatts (GW) of nonfossil energy capacity and meet 50% of electricity requirement from renewable energy sources, thereby reducing the carbon intensity of the economy by 45% by 2030.¹ It will also facilitate the entry of a large international energy company in India.

II. THE PROJECT

A. Project Identification and Description

3. **Project identification.** In December 2020, Al Jomaih Energy and Water Company (AEW or the sponsor), headquartered in the Kingdom of Saudi Arabia (KSA), won a bid to develop and operate 80 MW of photovoltaic solar capacity under phase XI of competitive bidding conducted by Gujarat Urja Vikas Nigam Limited (GUVNL), a state-owned company with six subsidiaries involved in generation, transmission, and distribution. On 1 January 2021, AEW incorporated AWP (the borrower), a 100% owned special purpose vehicle, to implement the project. (Confidential information redacted).

4. ADB is providing up to ₹4,063 million (or its equivalent in United States dollars) senior secured loan to AWP. To keep ADB's net exposure within the single-exposure limit, ADB is facilitating cofinancing either through risk transfer arrangements or sell down to (Confidential information redacted).

5. The project provides ADB with an opportunity to scale up its clean-energy financing.² Globally, India ranks fifth in terms of solar energy capacity, which has increased by about 13 times from 3.7 GW in March 2015 to 49.3 GW in December 2021, with another 37.0 GW under implementation.³ The government expects the private sector to lead the capacity addition. The unique reverse auction structure leading to discovery of the lowest tariff, a favorable movement in solar panel prices, the creation of credible offtake intermediaries, and the setup of mega solar parks and other enabling infrastructure resulted in solar power tariffs declining to ₹1.990 (\$0.026) per kilowatt-hour (kWh) in 2021, from ₹5.200/kWh (\$0.069/kWh) in 2015, which greatly improved the affordability of solar power in India.

6. **Project design.** On 30 January 2021, AWP signed the power purchase agreement (PPA) with GUVNL at ₹1.99/kWh, the lowest tariff discovered in India to date, for 25 years from the scheduled commercial operations date (SCOD). Subsequent to the bid, the government imposed a 40% basic customs duty (BCD) on imported solar modules effective from 1 April 2022. (Confidential information redacted). The project will also pay an increased goods and services tax

¹ Government of India. Ministry of External Affairs. 2021. [National Statement by Prime Minister Shri Narendra Modi at COP26 Summit in Glasgow](#). New Delhi.

² ADB. 2021. [Energy Policy](#). Manila.

³ Data from India's Central Electricity Authority; and 2021. [Solar projects of 107 GW either installed or under implementation, says minister](#). *Economic Times*. 1 December.

(GST) rate on solar modules (from 5% to 12% applicable from 1 October 2021) and balance of system. (Confidential information redacted).

7. In light of the coronavirus disease (COVID-19), GUVNL provided an extension of 76 days to achieve financial closure (new date: 16 April 2022) and the SCOD (new date: 14 October 2022). If commissioning is delayed beyond the SCOD by up to 6 months, GUVNL may draw on AWP's performance bank guarantee of \$1.0 million on a per-day basis proportionate to the capacity not commissioned. For delays beyond 6 months from the SCOD, the contracted capacity will be reduced to the capacity commissioned up to that point, subject to it being at least 25 MW.

8. As per the PPA, the contracted capacity utilization factor for the project is 28.5% and can be modified until 1 year from commissioning. Thereafter, it will remain unchanged for the balance term of the PPA. GUVNL will grant must-run status to the project. For grid backdown because of lower demand, the borrower will be compensated by GUVNL based on the average generation during the month. For grid unavailability, the compensation will be based on the average generation during the year and paid by way of excess generation over the succeeding three years.

9. GUVNL is the offtaker for the project. It is consistently deemed the best state offtaker in India and has robust financials. It has a track record of making timely payments, including for three ADB-funded projects for which GUVNL was the PPA counterparty: the Gujarat Solar Power Project, the 145 MW Grid-Connected Solar Project, and the Solar and Wind Power Development Project.⁴ ICRA Limited, an independent rating agency based in India and a subsidiary of Moody's, rated GUVNL *domestic AA- (stable)* as of 30 April 2021. GUVNL reported revenues of \$6.7 billion and net profit of \$264.3 million in FY2021. As of 31 March 2021, it had total assets of \$12.3 billion, and its net worth was \$4.8 billion.

10. The project requires 300 acres of land. Land for the solar plant has been identified and the borrower is signing 30-year land lease agreements with multiple private landowners. It expects to complete the entire land lease by June 2022. (Confidential information redacted).

11. The power will be evacuated through a 6 kilometers long transmission line. During due diligence, a critically endangered bird, the lesser florican, was sighted near the proposed transmission line route. To mitigate the associated environmental risks, about 2 kilometers of the transmission line in the affected region will be constructed underground. Gujarat Energy Transmission Corporation Limited (GETCO) will facilitate the construction of the transmission line by one of its approved contractors, which is usually the case in Gujarat. GETCO will also provide the detailed engineering for construction. After completion, the operation and maintenance (O&M) of the transmission line will be carried out by GETCO at the cost of the project.

12. (Confidential information redacted)

13. **Borrower and sponsor.** AWP is the special purpose vehicle established to implement the project. It is 100% owned by AEW, (Confidential information redacted). ADB has experience of working with the Al Jomaih group since 1996, and was a lender to and investor in several

⁴ ADB. [India: Gujarat Solar Power Project](#); ADB. [India: 145 Megawatts Grid-Connected Solar Project](#); and ADB. [India: Solar and Wind Power Development Project](#).

projects in which a group entity was a direct or indirect shareholder.⁵ The loans to these projects were fully paid off, and ADB made a successful exit on its equity investment.⁶

14. (Confidential information redacted).⁷

15. (Confidential information redacted).

16. (Confidential information redacted).

17. (Confidential information redacted).

18. ADB conducted integrity due diligence on AWP, its management, its shareholders and their managers and shareholders and significant contracting entities.⁸ (Confidential information redacted). No tax integrity due diligence was required.

B. Development Impact, Outcome, and Outputs

19. **Impact.** The project is aligned with the government's targets of reaching 500 GW of nonfossil energy capacity, meet 50% of India's energy requirements from renewable energy, and reduce the carbon intensity of the economy by 45% by 2030 (footnote 1). ADB's support to the project will increase the share of renewables in GUVNL's energy mix and help bring down the average grid price in the state of Gujarat.

20. **Outcome.** The project will have the following outcome: renewable power delivered to the domestic grid increased. It will generate about 188 gigawatt-hours of clean energy per annum and help avoid the emission of 158,000 tons of carbon dioxide annually from 2024. It will also boost local employment and contribute to the local economy through domestic purchases.

21. **Outputs.** The outputs will be: (i) solar power generation capacity increased by 80 MW, (ii) local employment generated and gender equality enhanced, and (iii) growth of local economies supported.

C. Alignment with ADB Strategy and Operations

22. **Consistency with ADB strategy and country strategy.** The project is fully aligned with ADB's Energy Policy, which prioritizes support for renewable energy development (footnote 2). The project is consistent with the following operational priorities of Strategy 2030: (i) accelerating progress in gender equality; and (ii) tackling climate change, building climate and disaster resilience, and enhancing environmental sustainability.⁹ It contributes to ADB's goal to provide cumulative climate finance of \$100 billion from 2019 to 2030, since the loan of \$53.8 million contributes towards ADB's climate mitigation financing. No adaptation finance has been estimated for this project. It will also contribute to ADB's operational goal of scaling up private sector

⁵ (Confidential information redacted).

⁶ ADB provided financing of \$150 million to Karachi Electric (ADB. [Pakistan: KESC Post-Privatization, Rehabilitation, Upgrade, and Expansion](#)), of which \$125 million was debt (fully repaid by February 2015) and \$25 million was convertible debt (which was converted into common equity in December 2012 and exited in September 2016).

⁷ (Confidential information redacted).

⁸ ADB. 2003. *Enhancing the Asian Development Bank's Role in Combating Money Laundering and the Financing of Terrorism*. Manila.

⁹ ADB. 2018. [Strategy 2030: Achieving a Prosperous, Inclusive, Resilient, and Sustainable Asia and the Pacific](#). Manila.

development and private sector operations, including supporting private sector operations' long-term cofinancing target, whereby every \$1 in financing is to be matched by \$2.50 of long-term cofinancing as per Strategy 2030 (footnote 9). By promoting stable power supply and increasing the proportion of renewable energy generation, the project is aligned with pillar 2 (inclusive provision of infrastructure networks and services) and pillar 3 (addressing climate change and increasing climate resilience) of ADB's country partnership strategy, 2018–2022 with India.¹⁰

23. **Lessons from previous operations.** Extended annual reviews of previous ADB wind and solar projects in India financed by nonsovereign operations highlighted three key lessons: (i) the importance of energy assessments, (ii) the risks associated with land acquisition, and (iii) the need for adequate power evacuation facilities. The project's implementation arrangements incorporate these lessons, and ADB will closely monitor these aspects.

D. Project Cost and Financing Plan

24. (Confidential information redacted).

25. (Confidential information redacted).¹¹

E. Implementation Arrangements

26. (Confidential information redacted).¹²

F. Projected Financial and Economic Performance

27. (Confidential information redacted).^{13,14,15}

III. THE PROPOSED ADB ASSISTANCE

A. The Assistance

28. ADB will provide a senior secured loan of up to ₹4,063 million (or its equivalent in United States dollars). (Confidential information redacted). AWP will be bound by commercial terms and covenants stipulated in the financing agreements.

B. Value Added by ADB Assistance

29. ADB's financing is essential because it involves an innovative financing structure that brings down the cost of debt, thus ensuring the project's viability even at a record low tariff. In addition, ADB will provide access to long-term financing, which continues to be challenging for renewable energy projects in India, especially considering disruptions in the commercial debt market because of COVID-19, when many domestic lenders are facing a surge in nonperforming assets. ADB's involvement will help a new international sponsor, with strong experience in the

¹⁰ ADB. 2017. [Country Partnership Strategy: India, 2018–2022—Accelerating Inclusive Economic Transformation](#). Manila.

¹¹ (Confidential information redacted).

¹² (Confidential information redacted).

¹³ (Confidential information redacted).

¹⁴ (Confidential information redacted).

¹⁵ (Confidential information redacted).

power industry, to enter India and secure timely financing. ADB's engagement will add value by ensuring that the project implements ADB's Safeguard Policy Statement (2009) and thereby adopts internationally recognized environmental and social standards. (Confidential information redacted). ADB's involvement will ensure the implementation of gender-inclusive measures such as targets for women's employment during operations, and the provision of technical or engineering internships for women. ADB is also facilitating cofinancing through either an unfunded risk participation or sell down to (Confidential information redacted).

C. Risks

- 30. (Confidential information redacted).
- 31. (Confidential information redacted).
- 32. (Confidential information redacted).
- 33. (Confidential information redacted).^{16,17}
- 34. (Confidential information redacted).

IV. POLICY COMPLIANCE

A. Safeguards and Social Dimensions

35. ADB has categorized the investment in compliance with ADB's Safeguard Policy Statement (2009) as follows: environment (category B), involuntary resettlement (category B) and indigenous peoples (category C).¹⁸

36. ADB has reviewed the potential environmental and social impacts of the project and the measures to avoid, minimize, mitigate, and compensate for the adverse impacts in the safeguard reports and plans. The institutional capacity and commitment of AWP to manage the project's social and environmental impacts are deemed adequate. The project will allow the state of Gujarat access to affordable and clean energy with the lowest recorded tariff of ₹1.99/kWh. It will lease about 300 acres of land (against 332 acres of surveyed land belonging to 116 landowners) which is flat to slightly undulating private agricultural land. No physical displacement will occur from project's development. The power from the project will be evacuated through a 6 kilometers long 220 kilovolt transmission line. (Confidential information redacted).

37. An initial environmental and social impact examination was prepared by an independent consultant. The anticipated environmental impacts (ecology, noise, dust, waste generation and soil erosion) likely to result from construction activities are site specific, short term and can be effectively managed through good project management measures as per environmental management plans. Occupational health and safety risks will be mitigated through the development of a health and safety plan that will include routine training, monitoring, and provision of personal protective equipment. Consistent with ADB's Safeguard Policy Statement requirements, environmental and occupational health and safety provisions will be incorporated into the construction agreements.

¹⁶ (Confidential information redacted).

¹⁷ (Confidential information redacted).

¹⁸ ADB. [Safeguard Categories](#).

38. (Confidential information redacted).

39. Along with the initial environmental and social impact assessment, a land acquisition audit was conducted to validate the land leasing process. Based on the audit, all interviewed landowners willingly (Confidential information redacted) are satisfied with the annual lease amount of (Confidential information redacted). Execution of lease documents for solar plant is expected to be completed by June 2022. The study also identified farm workers who will be economically displaced because of conversion of agricultural land for the solar power plant. A livelihood restoration plan has been developed. No indigenous peoples or scheduled tribes or castes will be directly or indirectly affected by the project. A resettlement framework was prepared to cover right of way for transmission line which is expected to be finalized by October 2022. Once the route for the transmission line is finalized, a resettlement plan will be developed. The project will also develop stakeholder engagement plan and community development plan as documented in the corrective action plan. A detailed grievance redress mechanism will be developed before commencement of civil works.

40. **Some gender elements.** AEW and AWP commit to implement measures to promote gender equality and/or women's empowerment in its business activities following ADB's Policy on Gender and Development (1998). These measures involve increasing the number of (i) women working in managerial, technical, legal, or financial roles; and (ii) women being granted a paid internship. AWP will submit periodic reports on the implementation of gender measures to ADB.

41. AWP will comply with national labor laws and, pursuant to ADB's Social Protection Strategy (2001), will take measures to comply with the internationally recognized core labor standards.¹⁹ (Confidential information redacted). The company will submit a safeguard and social monitoring report on an annual basis that includes information on the project's compliance with the Safeguard Policy Statement. Information disclosure and consultation with affected people will follow ADB requirements.²⁰

B. Anticorruption Policy

42. AWP was advised of ADB's policy of implementing best international practice relating to combating corruption, money laundering, and the financing of terrorism. ADB will ensure that the investment documentation includes appropriate provisions prohibiting corruption, money laundering, and the financing of terrorism; and remedies for ADB in the event of noncompliance.

C. Investment Limitations

43. (Confidential information redacted).²¹

44. (Confidential information redacted).

D. Assurances

45. Consistent with the Agreement Establishing the Asian Development Bank (the Charter),²² ADB will proceed with the proposed assistance upon establishing that the Government of India

¹⁹ ADB. 2003. [Social Protection Strategy](#). Manila (adopted in 2001).

²⁰ Summary Poverty Reduction and Social Strategy (accessible from the list of linked documents in Appendix 2).

²¹ (Confidential information redacted).

²² ADB. 1966. [Agreement Establishing the Asian Development Bank](#). Manila.

has no objection to the proposed assistance to AWP. ADB will enter into suitable finance documentation, in form and substance satisfactory to ADB, following approval of the proposed assistance by the Board of Directors.

V. RECOMMENDATION

46. I am satisfied that the proposed loan would comply with the Articles of Agreement of the Asian Development Bank (ADB) and recommend that the Board approve:

- (i) the loan of up to ₹4,063,400,000 (or its equivalent in United States dollars) from ADB's ordinary capital resources to AEW India West One Private Limited for the AJ Solar Power Project in India, with such terms and conditions as are substantially in accordance with those set forth in this report, and as may be reported to the Board; and
- (ii) the waiver of the single-project exposure limit for the ₹4,063,400,000 loan as set forth in para. 43 of this report.

Masatsugu Asakawa
President

14 March 2022

DESIGN AND MONITORING FRAMEWORK

Impacts the Project is Aligned with

India's goals to reach, by 2030, 500 gigawatts of nonfossil energy capacity, meet 50% of its energy requirements from renewable energy, reduce the carbon intensity of the economy by 45% are achieved (National Statement by the Prime Minister Shri Narendra Modi at United Nations Climate Change Conference (COP 26) Summit in Glasgow)^a. ADB's support to the project will increase the share of renewables in Gujarat Urja Vikas Nigam Limited's energy mix and help bring down the average grid price in the state of Gujarat.

Results Chain	Performance Indicators	Data Sources and Reporting Mechanisms	Risks and Critical Assumptions
Outcome Renewable power delivered to the domestic grid increased	By 2024: a. Electricity delivered to offtaker increased to 188 gigawatt-hours per year (2020 baseline: 0) b. Annual emission of 158 thousand tons of carbon dioxide avoided (2020 baseline: 0) (OP 3.1)	a.–b. Company's annual development effectiveness monitoring report	R: Changes in regulatory environment or power purchase agreement R: Climate-change and weather-related risk
Outputs 1. Solar power generation capacity increased by 80 megawatts 2. Local employment generated and gender equality enhanced	By 2023: 1a. Total installed electricity generation capacity of the project increased to 80 megawatts (2020 baseline: 0) (OP 3.1.4) 1b. About 6 kilometers of 220-kilovolt interconnection transmission line installed (2020 baseline: not applicable) 2a. Number of jobs provided during the construction phase total at least 250 (2020 baseline: 0) 2b. Annual number of jobs provided during operations total at least 25 (2020 baseline: 0) 2c. Number of women working in managerial, technical, legal, or financial roles in Aljomaih Energy and Water India Private Limited ^b and Al Jomaih Energy and Water Company	1.–3. Company's annual development effectiveness monitoring report	R: Construction delays because of force-majeure events R: Cost overruns

Results Chain	Performance Indicators	Data Sources and Reporting Mechanisms	Risks and Critical Assumptions
3. Growth of local economies supported	increased to at least 3 by 2024 (2020 baseline: zero women among staff of 9) (OP 2.1) 2d. At least 2 women undertake a paid internship^c by 2024 (2020 baseline: 0) (OP 2.2) 3a. Domestic purchases relating to the construction of this project total at least ₹790 million (2020 baseline: 0) 3b. Annual domestic purchases of goods and services relating to the project's operations total more than ₹44 million (2020 baseline: 0) 3c. Payments to the government relating to the construction of this project total at least ₹1,633 million (2020 baseline: 0) 3d. Annual payments to the government relating to the operation of this project total at least ₹5 million (2020 baseline: 0)		
Key Activities with Milestones Outputs 1–3 - Asian Development Bank executes loan agreement with client by 10 April 2022 - Construction of solar power plant completed by 13 October 2022 - Solar power plant commissioned by 14 October 2022			
Inputs Asian Development Bank: ₹4,063 million (direct loan) AEW India West One Private Limited: ₹1,624 million (equity)			

OP = operational priority, R = risk.

^a Government of India. Ministry of External Affairs. 2021. [National Statement by Prime Minister Shri Narendra Modi at COP26 Summit in Glasgow](#). New Delhi.

^b A fully owned Indian subsidiary of Al Jomaih Energy and Water Company.

^c The internship will be in the field of management, technical, legal, or finance.

Contribution to Strategy 2030 Operational Priorities

Expected values and methodology details for all OP indicators to which this project will contribute results are detailed in Contribution to Strategy 2030 Operational Priorities (accessible from the list of linked documents in Appendix 2).

Source: Asian Development Bank.

LIST OF LINKED DOCUMENTS

<http://www.adb.org/Documents/RRPs/?id=55182-001-4>

1. Sector Overview
2. (Confidential information redacted)
3. (Confidential information redacted)
4. Contribution to Strategy 2030 Operational Priorities
5. (Confidential information redacted)
6. (Confidential information redacted)
7. Country Economic Indicators
8. Summary Poverty Reduction and Social Strategy

Supplementary Document

9. Waiver of Single Exposure Limit for Nonsovereign Operations
10. (Confidential information redacted)